



OAKRIDGE INTERNATIONAL SCHOOL  
HYDERABAD, BACHUPALLY  
A NORD ANGLIA EDUCATION SCHOOL



# BACKGROUND GUIDE



## UNHRC

**Agenda: Combating Religious Intolerance:  
Balancing Freedom of Expression and  
Protection from Discrimination and  
Incitement to Violence Based on Religion or  
Belief**





## LETTER FROM THE EXECUTIVE BOARD:

We are delighted to welcome you to Oakridge Bachupally Model United Nations. It would be our pleasure to serve as the Executive Board for the conference. As a valuable resource, we have designed this Background Guide to help you start your research process. The Background Guide will provide the guiding topics and questions for your external research and background research on your country.

We request every delegate to read the background guide and come to the conference with an open mind, ready to meet and work with new people and to participate in the debate actively. Keep in mind that this Background Guide should only be used as a tool to establish an understanding of the agenda. The delegates must research beyond what the Background Guide covers.

The delegates cannot use the Background Guide as a source during the conference. We urge the delegates to ask compelling questions and make interactive speeches in order to make the committee sessions more fruitful and interactive. Feel free to reach out to the Executive Board at any time prior to or during the conference if you have any queries regarding the agenda or the rules of procedure. We shall reply as soon as possible.

We wish you the best for your preparation. Model UN conferences involve equal collaboration and competition, so keep your spirits high at all times. We look forward to having a committee filled with different perspectives, enthusiastic delegates debating their socks off, and a whole lot of fun!

Chairperson - Deeksha Singh

Vice Chairperson - Sanjitha Moka

Rapporteur - Ashritha Jaggannagari





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## 1. INTRODUCTION TO THE COMMITTEE

The Human Rights Council is the main intergovernmental body within the United Nations responsible for human rights. Established in 2006 by the General Assembly, it is responsible for strengthening the promotion and protection of human rights around the globe.

The Council, composed of 47 Member States, provides a multilateral forum to address human rights violations and country situations. It responds to human rights emergencies and makes recommendations on how to better implement human rights on the ground. The Council benefits from substantive, technical, and secretariat support from the Office of the High Commissioner for Human Rights (OHCHR). The Human Rights Council replaced the former United Nations Commission on Human Rights.

The UNHRC serves as an international forum for dialogue on human rights issues with UN officials and mandated experts, states, civil society, and other participants;

- Adopts resolutions or decisions during regular sessions that express the will of the international community on given human rights issues or situations. Adopting a resolution sends a strong political signal which can prompt governments to take action to remedy those situations;
- Holds crisis meetings known as special sessions to respond to urgent human rights situations, 36 of which have been held to date;
- Reviews the human rights records of all United Nations Member States via the Universal Periodic Review;
- Appoints the Special Procedures, independent human rights experts who serve as the eyes and ears of the Council by monitoring situations in specific countries or by looking at specific themes; and
- Authorizes commissions of inquiry and fact-finding missions, which produce hard-hitting evidence on war crimes and crimes against humanity.

The delegates must understand that the UNHRC functions strictly as a RECOMMENDATORY BODY. It does NOT hold any executive power to actually implement its recommended solutions.





## **2.FOUNDATIONAL FRAMEWORK**

### **2a. Universal Declaration of Human Rights (UDHR)**

The UDHR was adopted by the UN General Assembly in 1948 (Resolution 217 A). It contains 30 articles that form the global foundational baseline for human rights.

Article 18: Everyone has the right to freedom of thought, conscience and religion. No one shall be forced to believe in a religion or doctrine or to take part in a religious practice against his will. Article 19: Everyone has the right to freedom of opinion and expression. This right includes the freedom to hold any opinion and to receive and to spread information of any nature.

### **2b. International Covenant on Civil and Political Rights (ICCPR)**

- The International Covenant on Civil and Political Rights (ICCPR), adopted in 1966, requires the signatory states to respect the civil and political rights of individuals within their nations.
- Article 18 protects individuals from forced coercion to give up their freedom of thought, conscience, or religion; no person shall be forced to abandon their religion or beliefs.
- Article 19 ensures that individuals have the freedom of speech, but with certain responsibilities and restrictions to other individuals' rights as mandated by the state.
- Article 20 makes it a law in the state that the advocacy of hatred based on a national, racial, or religious premise is prohibited if it incites violence against individuals based on that premise.

### **2c. 1981 Declaration on the Elimination of All Forms of Intolerance and**

#### **Discrimination Based on Religion or Belief**

This declaration, proclaimed by the General Assembly in Resolution 36/55, expands on the principles of the UDHR and ICCPR to specifically eliminate religious discrimination. The declaration states that each individual has a right to not be discriminated against based on their religion or beliefs, details their rights regarding their religion, and passes a legislative law to each nation to eliminate religious intolerance.





### 3. INTRODUCTION TO THE AGENDA

Freedom of religion or belief and freedom of expression are both foundational pillars of the international human rights framework, enshrined side by side in Articles 18 and 19 of the Universal Declaration of Human Rights and later codified in the International Covenant on Civil and Political Rights. In principle, these rights are not meant to compete, a person's right to practice, change, or reject a religion should coexist comfortably with another person's right to speak, criticize, and express themselves freely, including on matters of faith. In practice, the Human Rights Council has spent over two decades wrestling with what happens when these two rights appear to pull in opposite directions: when speech about religion is experienced not as commentary but as an attack, and when protecting believers from that attack risks silencing legitimate expression.

This tension is not abstract. In 2005-2006, twelve editorial cartoons depicting the Prophet Muhammad, published by a Danish newspaper, triggered protests across the Muslim world, diplomatic boycotts, and unrest reportedly linked to over 200 deaths globally, an episode widely credited as the direct trigger for the OIC's renewed push at the UN for stronger protections against religious defamation. From 1999 to 2010, the international community attempted to manage this tension through a framework known as "combating defamation of religions," which treated religions themselves as entities capable of being insulted, and called on states to protect them accordingly. This approach steadily lost support at the General Assembly with each passing cycle, falling from 111-54-18 in 2006 to just 80-61-42 by 2009, as a growing number of states, concerned that it effectively legitimized domestic blasphemy laws and suppressed legitimate criticism and dissent, voted against it.

By 2011, the Council reached a landmark compromise: Resolution 16/18, adopted without a vote, abandoned the language of "defamation" entirely and reframed the issue around protecting individuals, from discrimination, negative stereotyping, stigmatization, incitement to violence, and violence based on religion or belief, rather than protecting belief systems from criticism. This shift was reinforced the same year by the UN Human Rights Committee, which affirmed that domestic blasphemy laws are generally incompatible with the right to freedom of expression. For over a decade, this consensus held even as the underlying tension kept resurfacing in dramatic form: the 2012 online release of the film *Innocence of Muslims*, which sparked protests in over 20 countries and was linked to the attack on the US diplomatic compound in Benghazi; the 2015 attack on the French satirical magazine *Charlie Hebdo*, which killed twelve people and became a global flashpoint between free-expression solidarity and calls for limits on religiously offensive satire; the decades-long Salman Rushdie case, in which a 1989 fatwa over an allegedly blasphemous novel culminated in a near-fatal stabbing attack in New York in 2022; and the 2020 killing of French schoolteacher Samuel Paty after he showed *Charlie Hebdo* cartoons in a lesson on free expression, which reignited France's domestic secularism debate and international tension over how far expression protections should extend into public and educational spaces.





Resolution 16/18 was implemented not through binding law but through the dialogue-based Istanbul Process, bringing together the Organization of Islamic Cooperation, the European Union, and other states to share best practices without resorting to restrictive legislation. Yet this consensus was always a compromise of ambiguity as much as agreement, it succeeded in part because it left unresolved exactly how far protection should extend, and exactly what counts as legitimate criticism versus incitement. That ambiguity came under direct strain in 2023, when a series of public Quran burnings in Sweden and Denmark, treated as protected protest speech under domestic law, triggered formal diplomatic protests from over dozens of OIC member states and forced the Council into urgent debate on religious hatred. The disagreement proved serious enough that, for the first time in over a decade, the OIC did not table its customary follow-up resolution at the Council's fifty-fifth session in 2024, a visible signal that the consensus underpinning 16/18 may be cracking, even as neither side has proposed abandoning the framework altogether.

This committee is tasked with confronting the questions Resolution 16/18 successfully deferred for over a decade, but can no longer avoid: where precisely does legitimate criticism of religion end and incitement to hatred or violence begin; whether existing dialogue-based mechanisms remain adequate to address recurring incidents in a way that produces measurable outcomes; and how the Council can update or reinforce its approach to religious intolerance without reopening the very disputes 16/18 was designed to close. Delegates will be expected to draw on the Council's own history, its successes, its compromises, and its unresolved tensions, to propose a way forward that neither side abandoned in over a decade of debate.





## **4.KEY TERMS AND DEFINITIONS**

### **4a. Defamation of religion vs. religious intolerance**

Defamation of Religion was a now-abandoned UN framing (used in resolutions from 1999-2010) that treated religion themselves, as belief systems, as capable of being defamed or insulted, and called on states to protect them from that. It focused on shielding the content of religion from criticism, stereotyping, or negative portrayal, rather than protecting the people who practice it. Religious Intolerance is the framing that replaced "defamation of religion" starting with Resolution 16/18 (2011). It shifts the focus entirely onto individuals, protecting persons from discrimination, negative stereotyping, stigmatization, incitement to violence, and violence based on their religion or belief, rather than protecting religions from criticism. This is the rights-holder-centered approach still in use today.

### **4b. Incitement to hatred/violence vs. protected speech**

Incitement to hatred refers to speech or expression that directly calls for or provokes discrimination, hostility, or violence against a person or group because of their religion. Under international law (ICCPR Article 20), this is the only religion-related expression states are actually required to prohibit, mere criticism or offense doesn't meet this bar.

Protected speech refers to expression, including criticism, mockery, satire, or even offensive commentary about a religion, its doctrines, symbols, or practices, that does not rise to the level of incitement under ICCPR Article 20. Under international law (ICCPR Article 19), freedom of expression extends to ideas that "offend, shock or disturb" the state or any sector of the population; causing offense alone is not a legitimate ground for restriction. The dividing line the UN draws is intent and effect: criticism of a religion (its texts, leaders, or beliefs) is protected even when harsh, while speech that targets people with intent to provoke discrimination, hostility, or violence against them is not.

### **4c. Blasphemy vs. hate speech vs. criticism of religion**

Blasphemy is speech or an act treated as irreverent or insulting toward a deity, religious figure, or sacred text. For example, depicting the Prophet Muhammad in cartoon form, or burning a religious scripture. It causes offense to believers but does not, by itself, target people with intent to provoke harm. The UN Human Rights Committee has stated that domestic blasphemy laws are generally incompatible with freedom of expression, since they protect belief systems rather than persons.





Hate speech is expression that attacks, demeans, or incites hostility against a person or group based on a protected characteristic, including religion and, when it meets the incitement threshold under ICCPR Article 20, states are obligated to prohibit it. Not all hate speech reaches this legal threshold; the UN distinguishes hate speech broadly (which may just be deeply offensive) from incitement specifically (which is actionable).

Criticism of religion is substantive engagement with, questioning of, or disagreement with religious doctrine, practice, or institutions, theological debate, academic critique, satire of religious authority. This sits furthest from any restriction: the UN treats this as core protected expression, even when religious communities find it offensive, because it engages with ideas rather than targeting believers.

#### **4d. Negative stereotyping and stigmatization**

Negative stereotyping refers to the attribution of generalized, often prejudicial characteristics to an entire religious group based on the actions or beliefs of a minority within it, media portrayal, or entrenched bias rather than on evidence about the group as a whole. Stigmatization is the broader social process by which such stereotypes become attached to a group's identity, marking them as suspect, dangerous, or lesser in public perception and policy.

Resolution 16/18 explicitly names combating negative stereotyping and stigmatization as a state obligation, distinct from and softer than incitement. States aren't required to legally prohibit stereotyping the way they must prohibit incitement; instead, 16/18's language calls for softer tools: public education, interfaith dialogue, media literacy, and political leadership speaking out against stereotyping, rather than criminalization.





## **5.PAST ACTIONS**

### **1999 - Commission on Human Rights, Resolution. 1999/82**

The predecessor to the Human Rights Council (the Commission on Human Rights) adopted the first resolution using the 'defamation of religions' framing, originally focused on Islam specifically before broadening in later years.

### **2006 - "Combating Defamation of Religions," A/RES/61/164**

Adopted by the General Assembly by a contested vote of 111-54-18. Marked the point where Western and Latin American states began consistently voting against the framing, citing free expression concerns.

### **2009 - "Combating Defamation of Religions," A/RES/64/156**

Passed with sharply eroded support — 80-61-42, compared to 111-54-18 just three years earlier in 2006 — showing the framework losing consensus with each cycle. The widening opposition, led by Western and Latin American states citing free expression concerns, signaled that the "defamation of religions" approach was becoming politically unsustainable and set the stage for the 2011 pivot to Resolution 16/18.

### **2009 - Special Rapporteur report proposing a conceptual shift, Resolution**

#### **A/HRC/12/38**

Report to the Council's 12th session explicitly discussing the need to move from "defamation of religions" toward an incitement-based, person-centered framework, the intellectual groundwork for 16/18.

### **March 2011 - Resolution 16/18 adopted, Resolution A/HRC/RES/16/18**

Adopted without a vote at the Council's 16th session, marking the consensus breakthrough that replaced "defamation of religions" with "religious intolerance." The shift moved the Council from protecting belief systems from criticism to protecting individuals from discrimination, stigmatization, and violence.

### **July 2011 - Istanbul Process launched**





First meeting held in Istanbul to begin implementing 16/18 through dialogue rather than binding law, bringing OIC and Western states to the same table for the first time on this issue. Later meetings followed in Washington DC (2011), London (2012), Geneva (2013), Doha (2013), and Jeddah (2015), though the process has never produced enforceable outcomes.

## **December 2011 - General Assembly parallel resolution, A/RES/66/167**

The GA adopted the equivalent resolution just months after the Council, also without a vote, cementing 16/18's language at the universal level rather than confining it to the Council. This gave the new framework broader institutional weight across the entire UN system, not just Geneva.

## **2023 - Quran burnings in Sweden and Denmark**

A series of public Quran burnings, treated as legal protest speech under Swedish and Danish law, triggered formal protests and outrage from OIC member states. The incidents reopened the underlying free-expression-vs-religious-protection dispute that 16/18 had papered over for over a decade.

## **July 2023 - Special session/urgent debate response (HRC53)**

The Council held a debate specifically addressing religious hatred and Quran burnings, with OIC states pushing for stronger protective language against such acts. Western states resisted, arguing existing incitement standards under Article 20 were already sufficient without new restrictions.

## **2024 - Draft resolution not tabled (HRC55)**

Pakistan, coordinating for the OIC, did not table the usual annual follow-up draft resolution at this session, an unusual break from over a decade of consistent practice. This signaled the breakdown of update negotiations with the EU over how to address the Quran-burning incidents in the resolution's text.





## 6.CASE STUDIES

### 6a. The 2023 Quran Burnings in Sweden and Denmark

- Beginning January 2023, individuals in Sweden and Denmark publicly burned or desecrated copies of the Quran in a series of separate incidents, often staged outside mosques or foreign embassies in Stockholm.
- Both countries permit such acts under domestic freedom of expression and assembly laws, provided they are conducted as peaceful protest with prior police authorization, meaning the burnings were initially treated as legally protected speech.
- The incidents triggered formal condemnations from multiple OIC states, strained diplomatic relations, and included protesters storming and setting fire to the Swedish embassy in Baghdad in July 2023.
- The OIC requested an urgent debate at the Council's 53rd session in mid-2023 addressing religious hatred and the rise in Quran desecrations.
- A resolution was adopted at HRC53 calling on states to prevent and prohibit religious hatred that constitutes incitement, but Western states, including the EU bloc, abstained or expressed reservations, arguing it risked legitimizing restrictions on protected speech.
- In August 2024, Swedish prosecutors formally charged the two most prominent Quran-burners, Salwan Momika and Salwan Najem, with "agitation against an ethnic or national group" over four separate 2023 incidents.
- Prosecutors argued that while burning a Quran alone can be protected as criticism of religion under Swedish law, the accompanying derogatory remarks about Muslims pushed these specific acts into hate crime territory, illustrating in practice the distinction between blasphemy and incitement.
- In January 2025, days before the verdict was due, Momika was shot dead near Stockholm in a killing still under investigation, and on 3 February 2025 the court convicted Najem of hate crimes, sentencing him to a suspended sentence and fines.
- This case is the clearest recent example of the 16/18 compromise being tested in real time: acts initially treated as protected speech were eventually distinguished by Swedish courts as crossing into incitement, even as the underlying international dispute over updating Resolution 16/18 was never resolved at the Council level.





## **6b. OIC's push to update the resolution vs. EU resistance**

- The OIC pushed to update the annual 16/18 resolution to explicitly name acts like Quran burning as incitement, arguing generic "religious intolerance" language was too disconnected from real events.
- The EU resisted, arguing existing ICCPR Article 20 standards were already sufficient and that naming specific acts risked reviving the "defamation of religions" framework abandoned in 2011.
- Sweden and Denmark maintained the burnings were legitimate protest speech under domestic law and opposed language that could be read as endorsing restrictions on such protests.
- Negotiations stalled through HRC54 (late 2023), with neither bloc willing to compromise on how explicitly to reference recent incidents.
- Pakistan, coordinating for the OIC, did not table the customary follow-up resolution at HRC55 (early 2024), the first time in over a decade this had not happened.
- The non-tabling signals the cross-regional consensus behind 16/18 is genuinely at risk, even though neither side has proposed abandoning the framework.





## 7. QUESTIONS A RESOLUTION MUST ANSWER

1. To what extent should the distinction between protecting individuals from religious discrimination and incitement, and safeguarding freedom of expression, determine the boundaries of permissible restriction on religiously offensive speech, and which body, international, state, or communal, bears primary responsibility for adjudicating this boundary?
2. Given the persistent absence of measurable outcomes from dialogue-based mechanisms such as the Istanbul Process over the past decade, what additional non-binding tools available to the Council would most effectively address recurring incidents of religious intolerance without compromising the Council's founding commitment to freedom of expression?
3. What diplomatic frameworks can be established to ensure that the principles of the 1981 Declaration are being applied within those states that have domestic laws that contradict the religious freedoms that are stated within the Declaration?
4. How can the member states of the ICCPR effectively reconcile the legal boundary between Articles 19 and 20 when legislating against the crime of hate speech?





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